

PCU335981 In Re the Joann Abila Palmer Revocable Trust u/t/d 11/13/2004 Daniel Recendez vs. Recendez, Adrian

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-08-20

Motion: Respondent's Ex Parte Motion to Quash Subpoena

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Re: In Re the Joann Abila Palmer Revocable Trust u/t/d 11/13/2004 Daniel Recendez vs. Recendez, Adrian

Case No.: PCU335981

Date: August 20, 2026

Time: 11:00 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Respondent's Ex Parte Motion to Quash Subpoena

Tentative Ruling: To grant the motion in part and modify the scope of the subpoena as indicated herein; to order production by September 3, 2026 as to the modified scope.

Facts

In this matter, Petitioner seeks to compel production of the trust documents, for an accounting, for removal of the current trustee, for damages, and for fees and costs as against Respondent Adrian Recendez.

The petition alleges that Decedent passed away January 14, 2025, that the only significant known asset of the Trust at that time was the Decedent's home located at 1191 East Thurman Ave., Porterville, CA 93257, that escrow closed on the sale of this property March 14, 2025 for \$320,000, that only \$8,000 has been distributed to Petitioner. (Petition ¶¶2-12.)

Specifically, Petitioner alleges that:

"Petitioner alleges that significant trust assets have been misappropriated since the close of escrow. Some misappropriations may have been well intentioned....

In the last year the Petitioner has witnessed the Respondent live outside of his financial means as neither the Respondent nor his wife have been steadily employed. Specifically, Respondent and his wife purchased a new car, purchased several

thousand dollars worth of musical equipment and made significant improvements to their own home.” (Petitioner ¶¶13, 14.)

On August 18, 2026, Respondent filed this motion, set for August 20, 2026, to quash a business records subpoena served on Bank of Sierra purporting to request: “All statements and copies of canceled checks from 01/01/2024 through 09/03/2026 for bank accounts belonging to Adrian Recendez and Adrian Recendez, Trustee of the Joann Abila Palmer Revocable Trust u/t/d 11/13/2004, held either jointly or separately.”

Respondent argues this seeks unrestricted access to banking records as an “...exploratory search through confidential financial information in an effort to develop additional allegations or construct inferences beyond specifically identified transactions presently at issue.”

Production is set for September 3, 2026.

The motion indicates personal and mail service on Petitioner’s counsel and Bank of the Sierra.

Authority and Analysis

The Court “may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc § 1987.1.)

The court, upon motion reasonably made by the party, may rule upon motions for quashing, modifying or compelling compliance with subpoenas. (Lee v. Swansboro County Property Owners Ass’n (2007) 151 Cal.App.4th 575, 582-583.) There is no meet and confer requirement in bringing a motion to quash. (Code Civ. Proc. § 1987.1.)

“[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action.” (Code Civ. Proc., § 2017.010.) “For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement ...’ (citation).” These rules are applied liberally in favor of discovery. (Colonial Life & Accident Ins. Co. v. Superior Court (1982) 31 Cal.3d 785, 790.)

Under section 1985.3, any consumer whose personal records, including those maintained by state or national bank, are sought by subpoena duces tecum and who is a party to the civil action in which the subpoena is served, may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena.

Here, the bank records sought are those of Respondent and those of the Trust.

The right of financial privacy is protected by Article I, section I of the California Constitution. (SCC Acquisitions, Inc. v. Superior Court (2015) 243 Cal. App. 4th 741, 754.) “A bank customer’s expectation is that, absent compulsion by the legal process, the matters he reveals to the bank will be utilized by the bank only for internal banking purposes.” (Pioneer Electronics (USA), Inc. v. Superior Court (2007) 40 Cal. 4th 360, 368, citing Valley Bank of Nevada v. Superior Court (1975) 15 Cal.3d 652, 657.)

When the information sought to be discovered impacts a person’s constitutional right to privacy, limited protections come into play for that person. (Shaffer v. Superior Court (1995) 33 Cal.App.4th 993, 999.) The protections cover both a person’s personal and financial matters. (Id.) The court must balance competing rights — the right of a litigant to discover relevant facts and the right of an individual to maintain reasonable privacy — in determining whether the information is discoverable.

(Id.)

The competing interest test is described in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552:

“The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. [Citation]” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.

The Court finds a sufficient countervailing interest here, where Petitioner alleges that the sale proceeds from the only known asset of the Trust have not been distributed and further that Respondent has utilized these trust funds for personal use. As such, the requested financial records are foundational to the disputes in the Petition.

The Court notes, however, that the sale closed March 14, 2025. As such, the Court finds the scope overbroad, as the subpoena seeks records from January 1, 2024. The Court, therefore modifies the subpoena to production starting March 14, 2025.

Additionally, the subpoena seeks documents up until the production date. This does not permit the responding Bank sufficient reasonable time to prepare the records for production where the production date and the end date for scope of the records are the same. As such, the Court will require production by September 3, 2026, but require records only through the date of this motion, August 20, 2026.

Additionally, the funds are alleged to have been deposited into a bank account in the name of the Trust. As such, at this time, the Court does not find a sufficient countervailing interest to produce statements and checks as to accounts held by Petitioner personally, either jointly or separately. Rather, the Court will permit production of the bank accounts belonging to the trust into which the escrow proceeds were deposited.

“All statements and copies of canceled checks from 03/14/25 through 08/20/26 for bank accounts belonging to the Joann Abila Palmer Revocable Trust u/t/d 11/13/2004.”

Therefore, the Court grants the motion, in part, as to the modified scope above. The proposed production date of September 3, 2026 appears reasonable.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.